

FL-23-003217 BLANCO VS BLANCO

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-09-22

Motion: Petitioner's Request for Order re "Other," etc.—HEARING REQUIRED. Proof of service of the moving papers by publication/posting as authorized by the Court is on file and demonstrates presumptively valid and timely service for this pendente lite order request. Respondent has not filed a Responsive Declaration or other formal opposition and an Order to Show Cause hearing has been scheduled for Respondent's most recent failure to appear. Accordingly, the Court is inclined to grant those requested that orders that seek to maintain the status quo, avoid default and preserve the marital estate's interest in the subject residence, etc. That said, the scope of the requested orders are, in part, overbroad and would potentially afford Petitioner unilateral authority that would otherwise require leave of court and implicate the Court's non-delegable duty over property characterization, valuation and division with regard to the marital estate in the absence of a bilateral party stipulation. In particular, the Court has concerns regarding No. 3, exclusive authority to "negotiate loss mitigation," as it is tantamount to conferring Petitioner a unilateral power of attorney to act on behalf of both parties without prior notice and the Court's approval. The same is true of No. 8, to the extent that it prematurely asks to Court to approve of whatever Petitioner's efforts and expenses in avoiding a default in advance of those acts and expenses having been made and without knowing what they will be. Counsel for Petitioner is invited to appear and address the Court's concerns. If satisfied, the Court may approve and grant one or more of the requested orders as modified by the Court at the hearing. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: 1790276e549f1879280d01dc057f9e5f3eacc8b76d34a93fcf5cc5e5b1d9f03b

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